

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;
DEFENDANTS

Case No.: CGC-25-631801 **TO**
(Related: CGC-21-594102)

**NOTICE OF MOTION AND MOTION
FOR LEAVE
TO FILE THIRD AMENDED
COMPLAINT**

Date: _____
Time: _____
Dept.: _____
Judge: _____
Reservation No.: _____

ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that upon this Court's grant of Plaintiff's pending Motion for Leave to File Second Amended Complaint (hearing May 6, 2026), and upon subsequent identification of any Round D pleading defects requiring further amendment, Plaintiff will apply for an order shortening time to hear this Motion for Leave to File Third Amended Complaint. This motion is served contingently as supporting papers to Plaintiff's ex parte stay application and as notice of Plaintiff's two-layer cure strategy. Hearing date to be set on OST following SAC ruling.

1 **GROUNDS FOR MOTION**

2 This Motion is made on the following grounds:

3 **1. LIBERAL AMENDMENT POLICY**

4 California courts have a strong policy favoring resolution of disputes on their merits. Code of
5 Civil Procedure § 473 grants courts broad discretion to allow amendments to pleadings, and that
6 discretion should be exercised liberally in favor of amendments. Nestle v. City of Santa Monica
7 (1972) 6 Cal.3d 920, 939.

8 **2. RESPONSE TO DEFENSE CCP § 436 MOTION — SPECIFIC CURE** 9 **OF EIGHT OBJECTIONS**

10 The proposed Third Amended Complaint specifically cures the eight objections raised in Defen-
11 dants' April 22, 2026 Motion to Strike under CCP § 436:

Defense Objection	TAC Cure Section
(1) <u>Kulchar</u> extrinsic-fraud viability	Section I: Four-channel framework with judicial-reliance quote
(2) Appeal-is-the-remedy	Section IV.5: <u>Kougasian/Stevenot</u> independent action doctrine
(3) Civil Code § 47(b) privilege	Section II: Nine-Point Chain; <u>Flatley/Action</u> <u>Apartment</u> illegality anchor
(4) Standing / <u>Shaolian-Norton</u>	Section III: <u>Estate of Sanders</u> ; <u>Doctors'</u> <u>Company</u> framework
(5) Collateral estoppel	Section IV: Five-issues-not-adjudicated; primary-rights table
(6) CCP § 1032 prevailing-party	Section V: Express disclaimer
(7) Damages items / duplicative	Section V: Reservation paragraph; fraud-delta limitation

Defense Objection

TAC Cure Section

(8) IIED / Ribas (not asserted)

Section VI, Tier 4: Emotional distress as
equity factor only

3. NO PREJUDICE TO DEFENDANTS

Defendants will not be prejudiced by the proposed amendments:

- The TAC does not add any new parties beyond those already named in the operative complaint.
- The TAC does not assert fundamentally new theories of liability—extrinsic fraud, constructive fraud, and § 6128(a) violations were already alleged. The TAC pleads these theories with greater specificity.
- No additional discovery should be necessary as a result of the amendments.
- The case is at an early stage.

4. GOOD FAITH AMENDMENT

The proposed amendments are made in good faith to address objections raised in Defendants' CCP § 436 Motion to Strike. Plaintiff has diligently responded to the motion by preparing curative amendments.

5. MERITORIOUS CLAIMS SUPPORTED BY CERTIFIED RECORD

The proposed Third Amended Complaint states meritorious claims supported by the certified record, including:

- The February 28, 2025 judicial-reliance quote (Hr'g Tr. pp. 291:26–292:7);
- The April 16, 2025 “provided by Dolan” admission (RT 7, p. 213, ll. 13–15);
- The nine-point evidentiary chain documenting 893 days of defense possession prior to categorical denial.

SUPPORTING PAPERS

This Motion is based upon:

- This Notice of Motion and Motion;
- The accompanying Memorandum of Points and Authorities;
- The Declaration of Franciscus Dylan Rosario;
- The Request for Judicial Notice;
- The proposed Third Amended Complaint (lodged herewith);
- The Cure Matrix — Defense Objection Map;
- All records and files in this action; and
- Such other evidence and argument as may be presented at the hearing.

RELIEF REQUESTED

Plaintiff respectfully requests that this Court enter an order:

1. Granting Plaintiff leave to file the Third Amended Complaint in the form lodged with this motion;
2. Deeming the Third Amended Complaint filed and served as of the date of the order;
3. Mooting Defendants' pending Motion to Strike the Second Amended Complaint; and
4. Granting such other relief as the Court deems just and proper.

Dated: _____

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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Dated: April 22, 2026



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